

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 6, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 5	20CV367132	Maggie Liu vs David Wong et al	Motion for Fees OFF CALENDAR
LINE 6	22CV406777	Abhinav Bezgam et al vs 18771 Homestead Road, LLC et al	Motion: Stay Ctrl Click (or scroll down) on Line 6 for tentative ruling.

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Calendar Line 1

Case Name: *Taneesh Reddy v. George Michael Sasko IV, et al.*

Case No.: 24CV453480

Before the Court is Defendants Mountain View Whisman School District (the “District”) and Dalton Ernesto Mendoza Oliva’s (“Oliva”) (collectively, “Defendants”) demurrer to the complaint (“Complaint”) filed by Plaintiff Taneesh Reddy (“Plaintiff”). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. Background

This is an action for negligence. According to the allegations of the operative Complaint (“Complaint”), on December 19, 2023, Plaintiff was a passenger in a 2003 Infiniti G35 (the “Infiniti”) driven by Defendant George Michael Sasko IV and owned/leased by Defendants George Michael Sasko IV, George Michael Sasko III and Khatoun Nourallahi. (Complaint, ¶¶ 3-4.) The Infiniti was heading northbound on Miramonte Avenue in Mountain View when it struck a 2001 Ford E-150 (the “Ford”) being driven by Oliva, who was allegedly acting in the course and scope of their employment with the District at that time. (*Id.*, ¶ 5.) Oliva’s vehicle is alleged to have been owned by the District. (*Id.*) Plaintiff alleges that Mr. Sasko IV, the District and Oliva “negligently and carelessly drove, operated, maintained, owned, entrusted, serviced and controlled their respective vehicles” so as to cause the Infiniti to strike the Ford, causing Plaintiff to sustain injuries. (*Id.*, ¶ 6.)

Based on the foregoing, Plaintiff initiated this action on December 6, 2024 with the filing of the Complaint, asserting the following causes of action: (1) negligence (against all defendants); and (2) negligent entrustment of vehicle (against George Michael Sasko III and Khatoun Nourallahi).

On March 14, 2025, Defendant filed the instant demurrer to the Complaint on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff filed his opposition on May 23, 2025. May 30, 2025, Defendants filed their reply.

II. Defendants’ Demurrer

A. Legal Standard

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure s]ection 430.30, to the pleading on any one or more of the following grounds: ... (a) the court has no jurisdiction of the subject of the cause of action alleged in the pleading, (e) The pleading does not state facts sufficient to constitute cause of action, (f) The pleading is uncertain.” (Code Civ. Proc., § 430.10, subds. (a), (e) (f).) demurrer may be utilized by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

The court treats demurrer “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency*